RADAR INVESTMENTS (PVT) LTD t/a MACDONALD BRICKS

Versus

SAFEGUARD SECURITY (BULAWAYO) (PVT) LTD

And

WILLIAM NCUBE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
BULAWAYO 18 September 2025 & 18 May 2026

Civil trial

N. Mazibuko for the plaintiff
B. Mwatura for 1st & 2nd for the defendant

DUBE-BANDA J:

[1] This is a claim in which the plaintiff is claiming payment from the defendants arising from a robbery incident that occurred at the plaintiff's business premises. The plaintiff, Radar Investments (Pvt) Ltd ("Radar Investment"), is a company incorporated in terms of the law of Zimbabwe. The first defendant, Safeguard Security (Bulawayo) (Pvt) Ltd ("Safeguard Security"), is a security company also incorporated in terms of the laws of Zimbabwe. The second defendant is a security guard in the employment of Safeguard Security.

[2] The plaintiff's claim is based on the agreement for the provision of security services at the plaintiff's business premises, known as Montgomery, Bulawayo.

[3] The plaintiff claims against the defendants jointly and severally, the one paying the other to be absolved, payment in the sum of ZW$4,000.00, ZAR 38, 860.00 and US$84,378.00. In the notice of amendment dated 27 July 2022, the summons and declaration were amended by the deletion of the amounts stated above and substituted with the amount of USD$49,421,65. It being contended that this is the net amount lost by the plaintiff during a robbery at its premises guarded by the defendants, which loss is alleged to have been occasioned by the defendants' negligence or collusion with the robbers.

[4] The action is founded on allegations to the effect that the plaintiff entered into an agreement with Safeguard Security, in which the latter provided security services to its various business premises, including the premises known as Montgomery, Bulawayo ("premises"). It was averred that from 15 May 2021 to 16 May 2021, the second defendant was on duty at the plaintiff's premises in Montgomery, Bulawayo, and with intent to cause harm to the plaintiff or through negligence, he switched off the security lights around the compound. throwing the compound into pitch darkness and thereby creating a security risk. It was further contended that, pursuant to the lights being switched off, robbers struck the compound and subdued the security personnel on site and stole from the plaintiff's safe a total of ZW$4,000.00, ZAR38,000.00, and USD84,378.00. It was further contended that the second defendant's actions to switch off the lights against established protocol, and the notice of amendment, it was added that, contrary to the agreed guidelines, the second defendant was not at his post at the time the robbers struck, in that he was neither outside the guardroom nor patrolling the premises. It was pleased that the second defendant's conduct was either meant to assist the robbers to enter the premises or amounted to negligence, resulting in the loss. It was pleased that the second defendant's liability is premised on his conduct.

[5] In respect of Safeguard Security, it was pleaded that its liability was predicated on the common law principle of vicarious liability. In that the second defendant's actions occurred during the course and scope of his employment with Safeguard Security. In the notice of amendment, it was stated that the plaintiff submitted a claim to its insurers, and against a claim for the total equivalent of USD$87,169.97, the plaintiff remained uncompensated for the equivalent of USD$49,421.65. This is the amount subject to this litigation.

[6] In their plea, the defendants denied that the second defendant was negligent. It was denied that the robbery was caused by the second defendant. It was contended that, as normal, the second defendant switched off the light in his own guard room and left for patrol. The armed robbers gained entrance to the premises about 100m away from the guard room, i.e., at the workshop and rear fence. It was pleaded that the light in the guard room only lights the guard room and not the area where robbers gained access to the premises. It was further denied that the second defendant left his position contrary to protocol. One of his duties was to conduct patrols in his area of inspection. He was patrolling the premises, and he did not breach protocol.

It was pleaded that the robbers did not gain entrance through the area under his guard. It was stated that the security guards at the premises were overpowered by the heavily armed robbers. It was contended that an inspection of the premises was done on 14 May 2021 by Safeguard Security employees, and it was noted that the security lights at both plants were defunct and required attention. It was further stated that the plaintiff did not repair the lights as per the recommendation of Safeguard Security. It was pleaded that if the robbery was caused by the absence of lighting, it was the plaintiff's fault.

[7] It was further pleaded that in the event Safeguard Security is found liable, in terms of clause 3.2 of the contract between the parties, liability is limited to only 10% of the total monthly invoice for the site. The invoice for the site was ZW$123,660, and 10% is ZW$12,366. It was stated that the amount claimed is beyond the limit in terms of the contract.

[8] In its replication, the plaintiff contended that at the time the robbery occurred, the second defendant was not patrolling but was in his guard room, contrary to standard operating procedures, resulting in the robbers having access to the premises. It was pleaded that if the second defendant had been out patrolling and had not switched off the outside lights, the robbers would not have gained easy access to the premises. It was further contended that the area through which the robbers gained entry was covered by functioning lights, which were either deliberately or negligently turned off, which enabled the robbers to get to the guard room undetected, which was compounded by the second defendant's failure to be patrolling at the time.

[9] It was pleaded further that the clause relied on by the defendants is invalid and unenforceable as it negates the whole purpose of the contract and is contrary to public policy. The clause cannot be used to excuse the defendants from their intentional or negligent actions, which resulted in the loss to the plaintiff.

[10] At a pretrial conference held before a judge, the issues for trial were identified and delineated as follows:

a) Whether the second defendant's conduct deliberately or negligently caused or contributed to the creation of a security risk that led to the plaintiff suffering monetary loss.

b) Whether the defendants are jointly and severally liable to reimburse the plaintiff for the net loss of USD$49,521.65 it suffered.
c) If liable, whether the defendants' liability should be limited to 10% of the monthly invoice for the site, given as ZW$12,366.00.

[11] At the commencement of the trial proceedings, the parties, by consent, added the fourth issue, (d) whether the first defendant is vicariously liable in respect of the plaintiff's claim.

[12] In terms of the pretrial conference minute, the *onus* is on the plaintiff on the issues (a), (b), and (d) as stated above, while on issue (c), the *onus* is on the defendants.

[13] In their written submissions, the parties argued about the plaintiff's cause of action. The defendants contended that the plaintiff sought at the trial to present and argue a different case from the one pleaded. It was contended that the plaintiff sought to sneak in a new allegation of negligence, not pleaded. The new allegations are said to be these:

i. That the second defendant was negligent in that he was not carrying out patrols.
ii. That first defendant was negligent in that it failed to supervise the second defendant.
iii. That the first defendant was negligent in that it did not visit the site during the night of the robbery, had it visited, it would have found robbers in action.
iv. That second defendant was negligent in that he was found sleeping during the night of the robbery.

[14] To put this issue into context, it is apposite to look at the pleadings. In the declaration, the plaintiff pleaded that the second defendant either intentionally or negligently switched off the security lights around the compound, which he was guarding, throwing the compound into pitch darkness and thereby creating a security risk. In respect of the first defendant, it was pleaded that it was vicariously liable for the actions of the second defendant. On 27 July 2022, the plaintiff filed and served a notice of amendment, wherein it was pleaded that contrary to agreed guidelines, the second defendant was not at his post at the time that the robbers struck, meaning he either carried out his duties negligently or deliberately in such a way that he aided the robbers. In addition, it was pleaded that, contrary to protocol, he was not at his post outside the guardroom or patrolling the premises.

[15] On 29 July 2022, the defendants filed their plea. In their plea, the defendant controverted the allegations in the notice of amendment. In the replication, the plaintiff persisted in the contention that the second defendant switched off the lights and was not patrolling but was inside the guardroom when the robbers struck.

[16] The issue that, contrary to agreed guidelines, the second defendant was not at his post at the time the robbers struck, and that, against protocol, he was not at his post outside the guardroom or patrolling the premises was introduced through the notice of amendment. The jurisprudence is that there are only two possible methods of procuring an amendment to a process or pleading after the issue of summons. One is by consent of the parties, and the other is by order of the court or a judge. Once a notice of amendment is filed, and no word is received from the opposing party, it is deemed that there is no objection to its filing, it is accepted by consent. See *Mashonaland Turf Club* v *Peters & Anor* 2019 (3) ZLR 928 (H). Therefore, the issue that the second defendant was negligent in failing to carry out patrols is directly pleaded.

[17] The contention that the second defendant was negligent in that he was found sleeping during the night of the robbery was not directly pleaded. However, I take the view that this was cured by evidence. I say so because the plaintiff pleaded the negligence of the second defendant, and in this regard, the issue for trial was identified as the following:

> "Whether the second defendant's conduct deliberately or negligently caused or contributed to the creation of a security risk that led to the plaintiff suffering monetary loss."

[18] In *Mtuda* v *Ndudzo* 2000 (1) ZLR 710 (H) at 719B- F, GARWE J (as he then was) held that where an issue is not raised in the pleadings but has been identified for determination at a pre-trial conference and fully canvased at the trial, even if an amendment is not moved, a court is entitled to adjudicate on it. This effectively means that an issue not directly pleaded will be cured by evidence. In *casu*, negligence of the second defendant was pleaded, and the issue of the second defendant sleeping on duty is an element of negligence and was canvassed in evidence. The evidence of Innocent Rafaire was that when he got to the guardroom, he found the second defendant asleep. In the circumstances, I take the view that the absence of a specific contention in the pleadings that the second defendant was negligent in that he was found sleeping during the night of the robbery is cured by evidence and this court is entitled to

adjudicate on it. See *Joel Simon Silonda (substituted by executor Vusumuzi Thomas Silonda)* v *Vusumuzi Nkomo* SC -6-22**.**

[19] I now turn to the pleadings in respect of the first defendant. The two issues that Safeguard Security was negligent in that it failed to supervise the second defendant, and it did not visit the premises during the night of the robbery, are neither pleaded in the declaration nor in the notice of amendment. In fact, the plaintiff did not directly plead the negligence of Safeguard Security; its liability was predicated on the notion of vicarious liability. In addition, the issue of direct negligence of Safeguard Security was not identified as an issue for trial. A litigant has a duty to allege in the pleadings the material facts upon which it relies. It is impermissible for a plaintiff to plead a particular case and seek to establish a different case at the trial. It is equally not permissible for the trial court to have recourse to issues falling outside the pleadings when deciding a case. See *Minister of Safety and Security* v *Slabbert* [2009] ZASCA 163; [2010] 2 All SA 474 *(SCA).* In *casu*, the direct negligence of the first defendant was not pleaded and cannot be introduced at the trial stage. The liability of the first defendant was alleged to be predicated on vicarious liability, and the plaintiff cannot be permitted to shift from that pleaded position.

[20] The correct approach to be adopted in analysing and assessing the evidence in a civil case is as follows: where there are two mutually destructive versions, as in the present case, in order to succeed, the plaintiff should satisfy the court on a preponderance of probabilities that its version is true and accurate and therefore acceptable, and that the other version advanced by the defendants is false or mistaken and falls to be rejected. See *National Employers' General Insurance Co Ltd* v *Jagers* 1984 (4) SA 437 (ECD) at 440D-441A.

[21] In determining the veracity of the evidence, the court should weigh and test the plaintiff's allegations against the general probabilities. As a result, evaluating a witness's credibility will inevitably involve taking the case's probabilities into account. If the balance of probabilities favours the plaintiff, then the court should accept its version as being probably true. If, however, the probabilities are evenly balanced in the sense that they do not favour the plaintiff's case any more than they do the defendants, the plaintiff can only succeed if the court nevertheless believes him and is satisfied that his evidence is true and that the defendants' version is false. It is impermissible to evaluate the evidence in a compartmentalised approach;

the law requires that evidence be evaluated as a whole. It is against the backdrop of these legal principles that the evidence and the probabilities of the case will be analysed.

[22] In summary, the common cause facts are that the plaintiff and the first defendant entered into a security services agreement. One of the premises at which the security services were to be provided was at Montgomery, Bulawayo. On the night of 15 May 2021 to 16 May 2021, a robbery occurred at the premises in Montgomery, Bulawayo, and the robbers subdued the security guards and stole a large amount of money. The plaintiff lodged a claim with its insurance company and recovered a certain percentage of the stolen amount, leaving a net loss of USD$49,521.65, which amount it claims from the defendants. The second defendant, in the company of two plaintiff's guards, was on duty at the premises when the robbery occurred. It is not seriously disputed that the robbers entered the premises through a hole they cut in the perimeter fence. The fence was cut approximately 50m to 100m from the main gate. The two security guards, i.e., the second defendant and Mr Innocent Rafaire (plaintiff's guard), who were armed with baton sticks, were overpowered by the armed robbers. The robbers got to the premises at around 12 midnight and left in the morning at around 5 am. They used grinders to open the safe, and it took them time and effort to open it. Finally, they succeeded in opening the safe, stole the money, and left. In fact, they spent approximately 5 hours at the plaintiff's premises.

[23] I now turn to the issues for trial as delineated in the pre-trial conference minute, including the one added at the commencement of the trial.

Whether the second defendant's conduct deliberately or negligently caused or contributed to the creation of a security risk that led to the plaintiff suffering monetary loss.

[24] The issue for determination is whether the second defendant deliberately or negligently caused or contributed to the creation of a security risk that led to the robbery. The first is a factual enquiry into whether he switched off the security lights around the compound; whether he was not carrying out patrols; and whether he was found sleeping immediately prior to the attack by the armed robbers. In answering this question, I propose briefly to summarize the evidence given by all the witnesses that has a bearing on this issue.

[25] Mr Walter Zimunya ("Zimunya"), plaintiff's Financial Director, testified that the second defendant acted either negligently or deliberately and that the first defendant was negligent in failing to supervise him. The robbers arrived at the premises just before midnight and left just before 5 am. He stated that just before the arrival of the robbers, the second defendant switched off the light around the premises. Switching off the light put the guardroom and gate where the guards were in darkness. This allowed the robbers to approach unnoticed. The second defendant was supposed to be outside the guardroom patrolling. However, at the time the robbers attacked, he was inside the guardroom. He said if the second defendant had been patrolling and the lights on, he would have seen the robbers approaching. In his evidence in chief, this witness did not dispute that the robbers gained entry 100 meters from the guardroom; however, he emphasized that the second respondent had a duty to patrol the perimeter fence. He accepted that an inspection of the premises carried out before the robbery showed that the lights needed attention, and they were fixed. He said that because the premises are big, lights might fail here and there, but overall, they were fixed and working.

[26] Under cross-examination, Mr Zimunya confirmed that he did not witness the events he testified to; he relied on official reports. He insisted that the lights were fixed; he said they are employees who work night shifts, so the lights must be functional. He stated that it was believed that the robbers cut a section of the fence to enter the premises. He confirmed that there was no break-in at the gate where there is a guardroom. He disputed the assertion that the second defendant switched off the lights when the robbers were already inside the premises.

[27] Mr Innocent Rafaire ("Rafaire") testified that he was at the material time a security guard employed by the plaintiff. His evidence was that a day before the robbery, at around 8 pm, he found someone standing by the gate. He asked the second defendant whether that person had been assisted and what his mission was during the night. The second defendant stopped his conversation with that person. He then informed the person that they did not entertain visitors at night.

[28] Mr Rafaire testified that on the date of the attack, he was on duty in the company of the second defendant and one Mcebisi Ndlovu, who was also in the employment of the plaintiff. He emphasized that the second defendant was to guard the main gate, offices, and the fuel station, i.e., from the cement side to the administration block. At around 12 midnight, he

entered the guardroom and found that the lights were switched off. The same switch in the guardroom was used on the outside lights. He switched on the lights. He said it was not normal to switch off the lights. He woke up the second defendant, who was asleep on a chair. When he was about to exit the guardroom, he heard a sudden noise, and he then saw some people wearing face masks. Some of those people entered the guardroom and assaulted him and pointed a firearm at him. The two, the witness and the second defendant, were taken to a place behind the offices and had their arms tied from behind, and their legs were also tied. They were ordered to lie facing the ground. He testified that he was the only one who was assaulted, and when the second defendant requested the robbers to loosen the wire tying his hands, they agreed. However, when he made the same request, it was refused. He said switching off the lights made it impossible for the second defendant to see the situation at the fuel station and at the offices. The witness testified that the area where the fence was cut was under the patrol of the second defendant. He said in the morning after the attack, the second defendant said they were to tell the managers that the attack happened when he (second defendant) was from the patrol, but the witness refused this suggestion.

[29] Under cross-examination, Mr Rafaire emphasized that there was one switch in the guardroom, which was for the guardroom light and for the lights that illuminated outside in the direction of the fuel station. He confirmed that the robbers cut part of the fence to gain entrance into the premises. He disputed that the fence was cut about 100m from the guardroom; in his view, it was about 50m to 60m from the guardroom. He partly agreed that the switched-off light in the guardroom did not affect the area where the fence was cut; however, when inside the premises, the robbers took advantage of the darkness caused by the switched-off light. He emphasized that the second respondent had fallen asleep in the guardroom.

[30] Under re-examination, Mr Rafaire testified that switching off the guardroom light caused darkness at the gate and part of the perimeter fence. He stated that switching on the light in the guardroom will illuminate the perimeter fence up to close to Harare Road, and the area outside the gate and the dust road outside the premises.

[31] After the conclusion of the evidence of Innocent Rafaire, the plaintiff closed its case, and the defendants opened their case by calling their first witness.

[32] The first defendant called the evidence of Mr Greater Sibanda ("Sibanda"), the manager. He testified that it was agreed that the Safeguard Security guard, i.e., in this instance the second defendant, would watch the main gate, the fuel station and the front part of the offices. He stated that on 20 May 2020, he had a meeting with Mr Mutale, a security manager of the plaintiff, and amongst other issues, he recommended the installation of CCTV cameras and alarms, and a monitor in the guardroom. These recommendations were meant to strengthen security, as there were no lights from the office to the workshop. He said he advised that the fence was not in good condition, and if it were possible, the plaintiff had to install an electric fence.

[33] On 14 May 2021, he went to the plaintiff's premises, and he was advised by the security guard that there were no lights at the gate. He again held a meeting with Mr Mutale and mentioned the issue of lights, and his recommendation was not acted upon. On 16 May 2021, after the robbery, he and Mr Matale inspected the premises and saw an opening in the fence, which was about 100m from the gate.

[34] Under cross-examination, he conceded that he was not at the scene at the time of the robbery. He stated that his evidence in this respect was premised on the reports and what he observed the morning after the robbery.

[35] The second defendant testified that his duties were to guard the main gate, from the part where there were offices and the fuel pump. He said he did patrols around the main gate, in front of the offices, and at the fuel pump up to around 12:15 am. He entered the guardroom at about 12:15 am. He wanted to write a report, but before he could do so, he heard people talking outside the perimeter fence. He stated that he switched off the guardroom light to check where the talking was coming from. There were no other lights to switch off; the only light was the one in the guardroom. At that moment, Mr Rafaire entered the guardroom and switched on the light, and that was the time the robbers entered the guardroom and attacked them. He said the robbers were armed with dangerous weapons. He said they took possession of his communication radio and removed it from the guardroom. The robbers remained at the premises until it was almost dawn. Under cross-examination, he stuck to his version about the reason he switched off the guardroom light and that there were no lights outside the guardroom.

[36] The factual resolution of this issue turns mainly on the evidence of Mr Rafaire and the second defendant. Mr Rafaire was a good witness with a clear recollection of what had taken place. His account was detailed, internally coherent on the core sequence, and externally corroborated. I am unable to find that the second defendant was telling the truth. I am satisfied that the probabilities do not favour his version. First, the reason he gave for switching off the guardroom light has a ring of falsehood. To say the robbers could talk with such loud voices for him could hear them from the guardroom cannot be true. These were robbers, and they must have understood the importance and the advantage of surprise. If ever they spoke, they must have kept their voices to the lowest minimum. They could not have raised their voices such that when outside the fence, they were heard by a person in the guardroom. In any event, this version is at variance with the plea, wherein it was categorically stated that he switched off the light in the guardroom and left for the patrol.

[37] In addition, he knew that he was not supposed to be in the guardroom, except when writing reports. This is the reason he attempted to sway Mr Rafaire to tailor his report and say the attack occurred when he (the second defendant) was on patrol. His evidence that he went to the guardroom to write a report cannot be the truth. Mr Rafaire found him sleeping, having fallen asleep on a chair. That was not writing a report.

[38] Regarding the issue of the lights, Mr Rafaire's evidence is corroborated by the evidence of Zimunya and the probabilities of the case. The premises could not have been as dark as sought to be portrayed by the second defendant and Mr Sibanda, because they were workers who were doing night shifts; they could not have worked at night at a place with no lights.

[39] The factual inquiry is answered in favor of the plaintiff, in that it was proved that the second defendant switched off the security lights in the guardroom, which automatically switched off lights at the main gate and the immediate vicinity thereof, including part of the perimeter fence, which was thrown into darkness. In addition, the second defendant was in the guardroom and was not carrying out patrols. He had fallen asleep on a chair in the guardroom.

[40] The next question that arises is whether the second defendant was complicit in the robbery. Although Mr Rafaire's evidence was that the robbers treated the second defendant with some measure of leniency, and that he was treated more harshly, it cannot, on the evidence, be said that the only reasonable inference is that the second defendant connived with the robbers. In

other words, his complicity in the robbery has not been proved on a balance of probabilities as required by the law.

[41] The question that requires closer investigation is whether the second defendant was negligent. The *locus classicus* remains *Kruger v Coetzee* 1966 (2) SA 428 (A) at p 430 E – F, where the court describes the test of negligence as follows:

> "For the purposes of liability culpa arises if (a) a diligens paterfamilias in the position of the defendant - (i) would foresee the reasonable possibility of his conduct injuring another in his person or property and causing him patrimonial loss; and (ii) would take reasonable steps to guard against such occurrence; and (b) the defendant failed to take such steps."

(42] The evidence of Mr Zimunya about the duties of the Safeguard Security guard finds it source in the agreement between the parties dated 19 April 2018. Under "site instructions", the agreement provides, *inter alia,* as follows:

> "1.1. Security guard to make regular patrols along the perimeter fence behind the guardroom up to the corner of Harare Road, including the fuel station areas.
> 1.2. Guard shall check and ensure the perimeter fence is intact, including the pumps.
> 1.5. No security guard should be found in the guardroom except when they are writing reports. The night guard shall sit outside the guardroom always."

[43] The acceptable evidence is that immediately before and during the attack, the second defendant was not patrolling and was inside the guardroom. In fact, he had fallen asleep. The act of sleeping itself was a dereliction of duty. His duties were to guard the premises, not to fall asleep at the premises. In addition, in switching off the lights, he put the whole area around the main gate and the nearby security fence in darkness. His conduct created a security risk. The act of switching off the lights made the guardroom more vulnerable and contributed to the failure to detect the robbers until they attacked. Again, if the lights were on and the second defendant was patrolling, he could have seen the robbers approaching and taken defensive action, e.g., activating the alarm system or raising a hue and a cry. In addition, Mr. Rafaire, who was patrolling, could have seen the robbers and taken appropriate defensive action. The robbers took advantage of this darkness to stealthily walk up to the guardroom without detection. This darkness made it possible for the robbers to benefit from the advantage of surprise and subdue the guards, and to successfully execute their attack and robbery. If the second defendant had been patrolling the area where the fence was cut, or close to that area, or

in the vicinity of the main gate and the guardroom, or the fuel station area, the robbers would have been detected timeously. In addition, if he was sitting outside the guardroom, the robbers could have again been detected timeously. The robbers would have been denied the advantage of surprise. The degree of security risk created by the conduct of the second defendant was high. A reasonable person in the position of the second defendant would have eliminated the risk by merely not switching off the guardroom switch, carrying out patrols, or sitting outside the guardroom. In fact, the robbers banked on an advantage of surprise, which the conduct of the second respondent provided them on a silver platter. They confirmed this when they said the patrolling by Mr Rafaire delayed their attack. In the circumstances, the conduct of the second defendant was grossly negligent. In *R.T Chibwe t/a Ross Motors P/L* v *Fawcett Security Operations P/L (HC 10367 of 2003) [2006] ZWHHC 79 (25 July 2006),* the court described gross negligence as follows:

> "Gross negligence is tantamount to wilful non-performance of one's contractual duties and obligations. See *Rosenthal v Marks* 1944 TPD 172 at 180. In that case gross negligence was described in the following terms: -
>
> > "Gross negligence (*culpa lata crussa*) connotes recklessness on entire failure to give consideration to the consequences of his action a total disregard of duty."'

[44] Safeguard Security argued that a case of negligence had not been established, let alone gross negligence. My view is that the armed robbery was made possible by the second defendant's failure to adhere to the standard operating procedures. Contrary to the agreement between the parties, at the material time, the second defendant was not patrolling along the perimeter fence behind the guardroom up to the corner of Harare Road, including the fuel station areas. He was in the guardroom when he was not writing a report. He was not sitting outside the guardroom. He had fallen asleep in the guardroom. This conduct was tantamount to gross negligence as described in *R.T Chibwe t/a Ross Motors P/L v Fawcett Security Operations P/L* (*supra*).

[45] The resolution of this issue has nothing to do with the removal of the Safeguard Security who patrolled with a dog, or the other security recommendations made by Mr Sibanda; it is about the events and the conduct of the second defendant on the night of the robbery. In addition, the fact that the robbers were armed with guns, while the second defendant and Mr

Rafaire were armed with baton sticks, neither negates nor minimizes the recklessness of the second defendant. His conduct created an environment that enabled the robbers to enter the premises and walk to the guardroom undetected. In addition, his conduct allowed the robbers to benefit from the advantage of surprise in their attack. As stated above, the second defendant negligently created a security risk that enabled the execution of a robbery, which resulted in the plaintiff suffering monetary loss.

Whether the first defendant is vicariously liable in respect of the plaintiff's claim.

[46] The plaintiff sues Safeguard Security as the employer of the second defendant based on the notion of vicarious liability. The only question in relation to the liability of the first defendant is whether it is vicariously liable for the negligence of the second defendant. The general principle of vicarious liability holds an employer responsible for the wrongs committed by an employee during the course and scope of employment. The courts have held that as long as the employee is acting "within the course and scope of his or her duty" or is "engaged with the affairs of his master," the employer will be liable.

[47] The *onus* is on the plaintiff to allege and prove that the second defendant committed the act of negligence whilst acting within the course and authority of his employment as an employee of Safeguard Security. See *Gibbins* v *Williams, Muller, Wright and Mostert Ingelyf* 1987 (2) SA 82 (T); *Minister of Police* v *Mbilini* 1983 (3) SA 705 (A), *Van der Berg* v *Coopers & Lybrand Trust (Pty) Ltd* [2000] ZASCA 77; 2001 (2) SA 242 (SCA), *Minister of Safety and Security* v *F* 2011 (3) SA 487; *Masuku v Mdlalose* 1998 (1) SA 1 (SCA), *Stadsraad van Pretoria* v *Pretoria Pools* 1990 (1) SA 1005 (T), *Midway Two Engineering & Construction Services BK* v *Transvaal BpK* 1998 (3) SA 17 (SCA) p 29.

[48] In *Mkhize* v *Martens* 1914 AD 382, the following was stated: -

> "….a master is answerable for the torts of his servant committed in the course of his employment, bearing in mind that an act done by a servant solely for his own interests and purposes and outside of his authority, is not in the course of his employment, even though it may have been done during his employment."

[49] The tests were set out in the matter of *Minister of Police* v *Rabie* 1986 (1) SA 117 (A) wherein the court formulated the tests as follows:

> "It seems clear that an act by a servant solely for his own interest and purposes, although occasioned by his employment, may fall outside the course or scope of his employment, and that in deciding whether an act of the servant does so fall, some reference is to be made to the servant's intention. The test in this regard is subjective. On the other hand, if there is nevertheless a sufficiently close link between the servant's act for his own interests and purposes, and the business of his master, the master may yet be liable. This is on objective test."

[50] In its declaration, the plaintiff pleaded that Safeguard Security is joined in this matter based on the negligence or unlawful actions of the second defendant during the course and scope of his employment. In its plea, the first defendant did not dispute that the second defendant was at the material time acting within the course and scope of his employment. It is trite that every factual allegation that is not disputed in the pleadings is taken to have been admitted. In addition, the evidence shows that on the date of the robbery, Safeguard Security deployed the second defendant to guard the plaintiff's premises. In other words, the second defendant was guarding the plaintiff's premises as an employee of Safeguard Security.

[51] Thus, when negligent conduct of a security guard is committed in the course and scope of his employer's business, the employer may be held vicariously liable in a claim occasioned by such negligence. See *K* v *Minister of Safety and Security* 2005 (6) SA 419 at 43 para. 21 *HK Manufacturing Co (Pty) Ltd* v *Sadowitz* 1965 (3) SA 328 (C) at 332C-E; *Fawcett Security Operations (Pvt) Ltd* v *Omar Enterprises (Pvt) Ltd* 1990 (2) ZLR 108 (H), *Rose NO* v *Fawcett Security Operstions (Pvt) Ltd* 1998 (2) ZLR 114 (H), and *Standard Chartered Finance Zimbabwe Ltd* v *Georgias & Anor* 1998 (2) ZLR 547 (H); *Witham* v *Minister of Home Affairs* 1987 (2) ZLR 143 (H); *Munengami* v *Minister of Defence* 2006 (1) ZLR 409 (H). In my view, that is the case here; Safeguard Security is liable based on the notion of vicarious liability.

Whether the defendants are jointly and severally liable to reimburse the plaintiff for the net loss of USD$49,521.65 that the plaintiff suffered.

[52] In its pleadings and the evidence, the plaintiff contended that it suffered a gross loss of ZW$4,000.00, ZAR 38, 860.00 and US$84,378.00. After indemnification by its insurance company, it remained with a net loss of USD$49,521.65. In essence, the defendants did not dispute that the plaintiff suffered a net loss of USD$49,521.65. Without much ado, I find it to be proved that the plaintiff suffered a net loss of USD$49,521.65.

[53] The defendants argued that the plaintiff was not entitled to payment of USD$49,521.65 because of the limitation clauses in the agreement. *Per contra*, the plaintiff argued that the limitation clauses relied upon by the first defendant are contrary to public policy and unenforceable.

[54] In *Beadica 231 CC and Others* v *Trustees for the time being of the Oregon Trust and Others* (CCT109/19) [2020] ZACC 13; 2020 (5) SA 247 (CC); 2020 (9) BCLR 1098 (CC) (17 June 2020) the Constitutional Court in South Africa emphasized that while *pacta sunt servanda* (contracts must be kept) is fundamental, courts can refuse to enforce contractual terms that are, under the circumstances, "manifestly unreasonable" or against public policy. Public policy imports into contracts values of fairness, reasonableness, and justice. In addition, contractual clauses that limit liability must be interpreted narrowly. In other words, it is a trite principle that indemnity clauses are to be construed restrictively. Related to this, if a party wishes to contract out of liability, it must do so in clear and unequivocal terms. In the case of doubt, ambiguity, or secondary meaning, the issue must be resolved against the *proferens* (the drafter of the contract). See Hutchison and Pretorius *Law of Contract* at 3rd ed (Oxford University Press, 2017) at 283.

[55] It was argued that the parties agreed that the Safeguard Security would only be liable in the case of gross negligence and not for ordinary negligence. A proper reading of Clause 1 of the Agreement, the limitation clause, shows that it does not protect Safeguard Security and its employees against gross negligence. It provides thus:

> "… Safeguard shall not be liable to the Hirer for any loss or damage sustained by it as a consequence of any wrongful act or omission of Safeguard or its employees, unless such act, omission was willful or grossly negligent and was committed in the course or scope of the employment of the employee concerned."

[56] The second defendant has been found to have been grossly negligent, and Safeguard Security to be vicarious liable for the second defendant's gross negligence. This makes the defendants liable to reimburse the plaintiff for the loss suffered because of the robbery.

[57] In addition, it was argued for the first defendant that it was agreed that the plaintiff would take out insurance to fully cover any losses that it might suffer. Safeguard Security placed reliance on Clause 5 of the Agreement, which provides as follows:

> "The Hirer undertakes to carry its own insurance cover at all times that this contract is in force, which cover should extend to indemnify the Hirer against all insurable losses which might arise, be they in consequence or other wise of the Guard or related Services provided by Safeguard. The Hirer further undertakes, in the event of its suffering loss, to claim in the first instance from its own insurer."

[58] A reading of Clause 5, through the lens that contractual clauses that limit liability must be interpreted narrowly, that a party wishing to contract out of liability must do so in clear and unequivocal terms, and that in a case of doubt, ambiguity, or secondary meaning, the issue must be resolved against the *proferens*, does not support the contention that the plaintiff had to fully indemnify itself against losses occasioned by Safeguard or its employees. All clause 5 requires is that the plaintiff takes out an insurance cover, and in the event of a loss, must, in the first instance, claim from its insurer. The plaintiff complied with this clause, took out an insurance cover, and in the first instance claimed from its insurer.

[59] In any event, Clause 5 conflicts with Clause 1, wherein Safeguard Security accepts liability for gross negligence. If the interpretation accorded to Clause 5 by the defendants were to be accepted, it would result in the Safeguard Security being absolved of liability, even if found to have been grossly negligent. Which would itself be contrary to Clause 1 of the Agreement between the parties. In addition, such an interpretation would produce an absurdity, in that the plaintiff would be required to pay, through insurance premiums, for the defendant's gross negligence. Such an interpretation of Clause 5 would undermine the values of fairness and, as such, would be against public policy.

[60] As stated above, the defendants are liable to reimburse the plaintiff for the loss suffered because of the robbery. This finding requires consideration of the last issue identified in the pre-trial minute.

If liable, whether the defendants' liability should be limited to 10% of the monthly invoice for the site, given as ZW$12,366.00.

[60] It was argued for the first defendant, that in terms of the agreement, should Safeguard Security be found liable, the amount payable would not exceed 10% of the total monthly invoice for the site. The enforcement of this clause would mean that the first defendant will be protected against liability in circumstances where its conduct amounts to gross negligence or willful non-performance of its contractual obligations. In *R.T Chibwe t/a Ross Motors P/L* v

Fawcett Security Operations P/L (HC 10367 of 2003) [2006] ZWHHC 79 (25 July 2006), the court said:

> "It is now settled law that where a party to a contract is in fundamental breach, it cannot hide behind the veil of disclaimer and limitation of liability clauses."

[61] It was stated in *R.T Chibwe t/a Ross Motors P/L* v *Fawcett Security Operations P/L* (*supra*) that the principle found expression in the words of HENNING J in the well-known case of *Hall – Thermotank Natal Pty* v *Hardmen* 1968 (4) SA 818 at 835 F-G. In that case, the judge observed that: -

> "In spite of the emphatic language in the exemption clause in this case, it appears to me that the parties could hardly have intended that the plaintiff would be exonerated from liability if it failed to perform its obligations at all, or if its performance proved useless or if it committed a breach going to the root of the contract."

[62] That being the case, Safeguard Security cannot avoid full liability based on the stated limitation of liability clause. It is established that a court may refuse to enforce valid contractual terms when it considers its enforcement to be unfair, unreasonable, or unduly harsh and, as such, contrary to public policy. In *Ok Zimbabwe Limited* v *Eric Msundire* SC-23-15, the court said:

> "…..a party cannot exempt himself from liability for wilful misconduct, or criminal or dishonest activity of himself, his servants or agents or from damage resulting from gross negligence on his part or that of his servants." (My emphasis).

See *Beadica 231 CC and others* v *Trustees, Oregon Trust and others [2020] ZACC 13; 2020 (5) SA 247 (CC); 2020 (9) BCLR 1098 (CC) para 89.*

[63] The view I take is that 10% monthly invoice for the site is unduly harsh on the plaintiff and bordering on being ridiculous. I agree that enforcing such an unfair and unreasonable clause would be against public policy. In the circumstances, the first defendant has not discharged the *onus* of proving that if liable, its liability should be limited to 10% of the monthly invoice for the site, given as ZW$12,366.00.

[64] In conclusion, the plaintiff has proved as required by the law that the defendants are jointly and severally liable to reimburse it for the net loss of USD$49,421.65 it suffered. It is for the above reasons that the plaintiff must succeed.

[65] The question of costs remains to be considered. No good grounds exist for a departure from the general rule that costs follow the cause. The plaintiff is clearly entitled to its costs.

In the result, it is ordered as follows:

a) The first defendant and second defendant, jointly and severally, one paying the other to be absolved, pay plaintiff the sum of USD$49,421.65 together with interest thereon at the prescribed rate calculated from the date of judgment to the date of final payment.
b) The first and second defendants pay costs on a party and party scale.

Calderwood, Bryce Hendrie and Partners, plaintiff's legal practitioners
Jambo Legal Practice, defendants' legal practitioners